

26STCV03834 26STCV03834

County: los-angeles

Division: Civil Law and Motion

Department: 834

Hearing date: 2026-07-30

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Case Number: 26STCV03834 Hearing Date: July 30, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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TROY WHITETO,

Plaintiff(s),

vs.

BATU

DEVELOPMENT, LLC, et al.,

Defendant(s).

Case No.:

26STCV03834

Hearing Date:

July 30, 2026

[TENTATIVE]

ORDER RE: ORDER TO SHOW CAUSE RE: PRELIMINARY INJUNCTION

Troy Whiteto ("Plaintiff") seeks a preliminary injunction restraining defendants Amour Escrow, Inc. ("Amour"), Batu Development, LLC ("Batu"), Quality Loan Service Corporation ("QLSC"), Equity California Real Estate ("ECRE"), Layers Title Company ("LTC"), Kiavi Funding, Inc. ("Kiavi"), Teya McCoy ("McCoy"), Danielle Love ("Love"), Eric Dion Green ("Green"), Shante Deshon Newton ("Newton"), and Shirley Martin ("Martin") (collectively, "Defendants") from foreclosing on the real property located at 1858 West 77th Street, Los Angeles, California, 90047, APN 6017-024-014 (the "Property"), and from any eviction or dispossession efforts.

The preliminary injunction is granted as to all Defendants except Batu and Kiavi.

I.

Background

1.

Factual Background

Doris Jeanne Smith ("Decedent") owned the Property. (Whiteto Decl., ¶ 2.) Decedent passed on December 12, 2024. (Whiteto Decl., ¶ 2.) Plaintiff is co-administrator of Decedent's estate. (Whiteto Decl., ¶ 2.)

In or around August 2025, Plaintiff was approached by Newton, principal of Batu, who offered to help renovate and sell Decedent's home. (Whiteto Decl., ¶ 3.) As part of this project, Plaintiff and Newton created TST Investment Group LLC ("TST"). (Whiteto Decl., ¶ 3, Ex. 1.) Plaintiff, his sister and co-administrator, and Newton initiated sale of the Property to TST, signing documents including a California Residential Purchase Agreement, Joint Escrow Instructions, and, on October 8, 2025, a Grant Deed. (Whiteto Decl., ¶ 4.)

During escrow, Newton and sales agent Eric Green ("Green") informed Plaintiff they would need to change the buyer from TST to Batu, because Plaintiff was a part owner of TST and the transaction must be at arm's length to qualify for a loan. (Whiteto Decl., ¶ 5.) Plaintiff refused to cooperate with the substitution. (Whiteto Decl., ¶ 6.)

Even though Plaintiff and his sister refused, the escrow closed with Batu rather than TST. (Whiteto Decl., ¶ 7.) Some of the relevant documents contain signatures from Plaintiff, though he did not sign those documents. (Whiteto Decl., ¶ 7.) In one case, the signature page from the Grant Deed appeared to be affixed to a new document purporting to transfer the Property to Batu. (Whiteto Decl., ¶ 8, Ex. 2.)

Plaintiff resides at the Property. (Whiteto Decl., ¶ 10.) Plaintiff recently received a Notice of Default and Election to Sell Under Deed of Trust ("Notice of Default"). (Whiteto Decl., ¶ 10, Ex. 3.) Plaintiff also received a "California Three (3) Day Notice to Vacate." (Whiteto Decl., ¶ 11, Ex. 4.)

Probate for Decedent's Estate has not closed. (Whiteto Decl., ¶ 13.)

2.

Procedural History

Plaintiff filed his verified complaint on February 5, 2026 against Batu, McCoy, Amour, and Love. Proofs of service on file show Plaintiff served the summons and complaint on Amour by substituted service on February 20, 2026, and on Love by personal service on February 18, 2026. On June 15, 2026, Amour and Love filed their demurrer to the complaint, as well as their motion to strike the complaint. On July 6, 2026, Plaintiff filed fictitious names amendments adding U.S. Bank National Association ("U.S. Bank") and QLSC as defendants. On July 7, 2026, Plaintiff filed a fictitious name amendment adding Kiavi as defendant.

On February 12, 2026, Plaintiff recorded a notice of pendency.

On July 10, 2026, the Court heard and granted Plaintiff's ex parte application for a temporary restraining order ("TRO") and order to show cause ("OSC") re: preliminary injunction. The Court noted that Batu was not properly served, but that Batu was not involved in the foreclosure proceedings. The Court ordered Plaintiff to personally serve Defendants with the OSC, TRO, summons and complaint, and all moving and supplemental papers no later than July 13, 2026. Any opposition was due no later than July 23, 2026, and any reply by July 27, 2026.

On July 15, 2026, Plaintiff filed a Declaration of Abraham L.

Niman Re: Proof of Service, wherein counsel stated that, with their agreement, Plaintiff served all restrained parties with the notice of ruling, summons and complaint, notice of case assignment, ADR packet, and notice of case management conference, as well as a notice and acknowledgement form for Kiavi's counsel. (Niman Decl., ¶¶ 2-4, Exs. 1-3.) There is no proof of service for Batu or any other indication Batu has been served.

On July 23, 2026, Kiavi filed its opposition.

On July 14, 2026, Plaintiff filed his verified first amended complaint ("FAC"). The same day, counsel for Plaintiff forwarded the FAC to all known counsel. (Niman Decl., ¶¶ 5-6, Ex. 4.)

II.

Request for Judicial Notice

Kiavi seeks judicial notice of the following exhibits: (1) a Deed of Trust recorded October 21, 2025 as instrument no. 20250727716 (RJN Ex. A); (2) an Assignment of Deed of Trust recorded April 6, 2026 as instrument no. 20260238506 (RJN Ex. B); (3) a Substitution of Trustee recorded April 15, 2026 as instrument no. 20260265274 (RJN Ex. C); (4) the Notice of Default, recorded on April 20, 2026 as instrument no. 20260276182 (RJN Ex. D). The requests are granted. (Evid. Code § 452(c).)

III.

Discussion

In determining whether to issue a preliminary injunction, the trial court considers two factors: (1) the reasonable probability that the plaintiff will prevail on the merits at trial (Code Civ. Proc. ["CCP"] §526(a)(1)), and (2) a balancing of the "irreparable harm" that the plaintiff is likely to sustain if the injunction is denied as compared to the harm that the defendant is likely to suffer if the court grants a preliminary injunction. (CCP §526(a)(2); 14859 Moorpark Homeowner's Assn. v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1402; Pillsbury, Madison & Sutro v. Schectman (1997) 55 Cal.App.4th 1279, 1283; Davenport v. Blue Cross of California (1997) 52 Cal.App.4th 435, 446; Abrams v. St. John's Hospital (1994) 25 Cal.App.4th 628, 636.) Thus, a preliminary injunction may not issue without

some showing of potential entitlement to such relief. (Doe v. Wilson (1997) 57 Cal.App.4th 296, 304.)

The purpose of a preliminary injunction is to preserve the status quo pending final resolution upon a trial. (See *Scaringe v. J.C.C. Enterprises, Inc.* (1988) 205 Cal.App.3d 1536; *Grothe v. Cortlandt Corp.* (1992) 11 Cal.App.4th 1313, 1316; *Major v. Miraverde Homeowners Assn.* (1992) 7 Cal.App.4th 618, 623.) The status quo has been defined to mean the last actual peaceable, uncontested status which preceded the pending controversy. (*Voorhies v. Greene* (1983) 139 Cal.App.3d 989, 995, quoting *United Railroads v. Superior Court* (1916) 172 Cal. 80, 87; 14859 *Moorpark Homeowner's Assn. v. VRT Corp.* (1998) 63 Cal.App.4th 1396, 1402.)

1.

Jurisdiction

Plaintiff has not shown service on Batu. Without effected service of process, the Court has no personal jurisdiction over Batu. A court may not issue injunctive relief against a defendant unless the court has personal jurisdiction over that party. (*Rothschild v. Erda* (1968) 258 Cal.App.2d 750, 753.)

2.

Probability of Success

"The trial court's determination must be guided by a 'mix' of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction." (*Butt v. State of California* (1992) 4 Cal.4th 668, 678.) However, "[a] trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim. (*Ibid.*)

Plaintiff brings claims for intentional misrepresentation, negligent misrepresentation, quiet title, cancellation of instrument, breach of oral contract, breach of fiduciary duty, and negligence. (FAC at 1.) However, Plaintiff only discusses the invalidity of the Grant Deed in his ex parte moving papers. Plaintiff has not filed supplemental supporting papers.

As Kiavi notes, Plaintiff neither pleads facts in the FAC nor

provides any evidence connecting Kiavi to Plaintiff's causes of action. Kiavi is not specifically mentioned in any allegation in the FAC except the party list. (FAC, ¶ 5.) Kiavi is not mentioned in Plaintiff's declaration. (See generally Whiteto Decl.) In Plaintiff's counsel's declaration, Kiavi is only mentioned in that counsel "noticed this name in a Deed of Trust recorded on the Property". (Niman Decl., ¶ 5.) Plaintiff does not provide this deed of trust. Kiavi is likewise only mentioned in the ex parte moving papers in two lists of defendants. (Appl. at 1, 6.)

Moreover, Kiavi holds no interest in the Property. (See RJN Exs. A-D.)

As for the other Defendants, who do not oppose, Plaintiff has provided testimonial and documentary evidence tending to show that Newton, Green, Love, and Batu either fabricated or fraudulently induced a grant deed conveying the Property to Batu. (Whiteto Decl., ¶¶ 6-9.) Therefore, the conveyance to Batu would be void. Plaintiff also provides some evidence that the deed is facially invalid, and therefore placing subsequent interest holders on record notice and therefore implicating Batu's mortgage on the Property and the lender Defendants' interests. (Whiteto Decl., ¶ 9, Ex. 2.)

Accordingly, the Court finds Plaintiff has shown a probability of success for quiet title and cancellation of instrument as to Defendants excluding Kiavi.

3.

Balance of Harms

The court must balance the irreparable harm that Plaintiff is likely to sustain if the injunction is denied as compared to the harm that Respondent is likely to suffer if the court grants a preliminary injunction. (CCP §526(a)(2); 14859 Moorpark Homeowner's Assn. v. VRT Corp., supra, 63 Cal.App.4th at 1402; Pillsbury, Madison & Sutro v. Schectman, supra, 55 Cal.App.4th at 1283.)

If no injunction issues, Plaintiff will lose his residence. (Appl. at 6-7; Whiteto Decl., ¶ 10.)

Kiavi tacitly acknowledges the balance of harms favors Plaintiff and does not argue the issue. (See, e.g., Opp. at 2.) Regardless,

Kiavi no longer has any interest in the Property. There is no harm to Plaintiff if Kiavi is not enjoined, and there is no harm to Kiavi if it is enjoined.

No other defendant has opposed, and on the evidence shown, no defendant will suffer harm beyond a delay of sale if the injunction is granted.

Based on the foregoing, the court finds that the balance of harms strongly favors Plaintiff, except as to Kiavi.

4.

Bond

In setting the bond, the court must assume that the preliminary injunction was wrongly issued. (*Abba Rubber Co. v. Seaquist* (1991) 235 Cal.App.3d 1, 15.) The attorney fees necessary to successfully procure a final decision dissolving the injunction also are damages that should be included in setting the bond. (*Id.* at 15-16.) While *Abba* reasoned that the plaintiff's likelihood of prevailing is irrelevant to setting the bond, a more recent case disagreed, stating that the greater the likelihood of the plaintiff prevailing, the less likely the preliminary injunction will have been wrongly issued, and that is a relevant factor for setting the bond. (*Oiye v. Fox* (2012) 211 Cal.App.4th 1036, 1062.)

Plaintiff has not addressed the issue of bond.^[1] The Court will discuss the matter with counsel at hearing.

IV.

Conclusion

Plaintiff has shown a probability of success on the merits, and the balance of harms strongly favors Plaintiff. However, Plaintiff has not shown a probability of success nor any harm relating to Kiavi. Further, Plaintiff has not properly served Batu. The preliminary injunction is therefore GRANTED as to all Defendants except Batu and Kiavi ("Restrained Defendants").

Pending final resolution of this matter, Restrained Defendants, and all persons acting in concert with them, are restrained and enjoined from conducting, noticing, or proceeding with any foreclosure sale, trustee's sale, or other foreclosure-related action affecting the Property. Restrained Defendants, and persons acting in concert with them, are further restrained from taking any

steps to dispossess Plaintiff from the Property to the extent such dispossession efforts arise from or depend upon foreclosure-related activity.

Date: July 30, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

Kiavi requests that Plaintiff be required to post a bond if the Court grants a preliminary injunction. Kiavi requests a bond "sufficient to compensate Defendant Kiavi for the damages that would be caused by its inclusion in the preliminary injunction," but does not argue or provide evidence to show what

those damages would be. (Opp. at 8.) Regardless, the Court need not make that determination as the injunction will not issue against Kiavi.